sition parties that have come together to fight the Modi-led BJP in the Lok Sabha poll, it held a nationwide protest on December 22 against the suspensions. Opposition leaders assert that the safety and security of Parliament are at stake, and that the government is duty-bound to give an explanation. Calling out the "dictatorial" approach of the Modi government, they alleged the suspension was a ploy to sidestep a discussion on contentious bills and pass them sans debate or amendment. "A complete purge is on so that draconian bills are passed without any meaningful debate...and so that the BJP MP who facilitated the entry of the two intruders into the Lok Sabha goes scot-free," Congress RS member Jairam Ramesh said.

WHITHER DEMOCRACY

Constitutional experts say the BJP has enough numbers to pass any bill, at least in the Lok Sabha, and hence does not have to get rid of rivals in either House. Such en masse suspensions also exhibit a blatant disregard for the tradition of dialogue and debate that forms the bedrock of parliamentary democracy. "They don't need to throw out Opposition members to pass bills even in the Rajya Sabha. The BJP has supporting parties there too. So this exercise of suspension baffles me. I see no logic," says P.D.T. Achary, former secretary-general of the Lok Sabha.

A senior BJP leader says the government wants to send a signal that it will not let the Opposition stall its legislative agenda. "They don't have the numbers, so they invent issues to use as excuses to prevent us from making laws that they are uncomfortable with," he says. We are not going to yield to this. They can certainly participate in the discussion following rules and decorum, but cannot bully us with theatrics. The show must go on, with or without them. The choice is theirs."

According to Satyanarayan Sahu, former joint secretary of the Rajya Sabha secretariat, raising slogans and placards and obstructing business cannot be the ground for collective suspension. He points out how, in the past, the BJP members, too, did all this and more—in 2008, party MPs even waved bundles of cash to embarrass the UPA government in the cash-for-votes scandal. In fact, former BJP minister Arun Jaitley, in an interview in 2011, justified obstructionism in Parliament. "There are but rare occasions in history when parliamentary obstructionism is not part of legitimate parliamentary tactics," the late leader had said.

Both Sahu and Achary say the situation could have been avoided if the government chose to make a statement. After the 2001 Parliament attack, then home minister L.K. Advani had made a statement in the House. "The government is accountable to the House and a statement should have automatically come from it. If it had done this basic duty, there would have been no occasion for the Opposition members to enter the well of the House," says Achary.

A GROWING CONFLICT

The ouster of Opposition members has become a major friction point this year. In March, Congress leader Rahul Gandhi was disqualified from the Lok Sabha after he was convicted in a defamation case by a local court in Gujarat, Modi's home state. He returned after his conviction was overturned by the Supreme Court in August.

Earlier this month, TMC leader Mahua Moitra was expelled after the lower house adopted the report of its ethics committee which, holding her guilty of "unethical conduct" and "serious misdemeanours", recommended her expulsion. Moitra has approached the Supreme Court against her removal.

While prompt action was taken against Opposition MPs, no action has yet been taken against BJP MP Ramesh Bidhuri, who used abusive language to deride BSP MP Danish Ali in the Lok Sabha on September 21. Meanwhile, TMC's Kalyan Banerjee, one of the suspended MPs, further stirred the debate on parliamentary propriety when he mimicked V-P Dhankhar during the recent protest at the Parliament complex. BJP leaders, including the PM, called it an insult to the constitutional position of the vice-president.

With both sides of the political spectrum guilty of such violations, neither is in a position to claim the moral high ground. Impasses in the past have been resolved via dialogue between the ruling party and the Opposition. That recourse can be taken again, provided both sides are willing. "The government of the day will always have its way, but the Opposition must have its say," says Sahu. That is how it should be in the world's largest democracy. But if the intent is to play politics and not relent, democracy can die a silent death. ■

THE BJP HAS ENOUGH NUMBERS IN THE HOUSE TO GET BILLS PASSED, WHY THEN GET RIVALS SUSPENDED? A SENIOR BJP LEADER SAYS THEY WANT TO SEND A SIGNAL, THAT THEY WON'T BE BULLIED

THE EXIT ROUTE

- In the winter session (Dec. 4-22), 143 Opposition MPs from both houses together were suspended, the highest number ever
- Under Rule 374 of the Rules of Procedure and Conduct of Business, the LS speaker can name a member who 'disregards the authority of the Chair or abuses the rules...' The House moves a motion and, if passed by a majority, the MP is suspended for a period not exceeding the remainder of the session. Rule 374A is invoked if a grave disorder happens and invites automatic suspension. In the RS, Rule 256 is used for the same

Sept. 3, 1962: Godey Murahari, an independent RS member from Uttar Pradesh, became the first parliamentarian to be suspended